

		Here, there is evidence showing waiver. First, as to knowledge of the contractual right, there is the agreement itself – which Defendants themselves presented. [Tredway Decl. (ROA #960), Ex. 1.] In his reply declaration, Dr. Mowlavi says he did not have access to his files in the beginning of this action because they had been seized by the police. [Mowlavi Decl., ¶ 3.] He does not state, however, that he was unaware of the existence of the arbitration agreement or his right to arbitrate. Moreover, he does not explain when he regained access to his files. As to intentional relinquishment, there is the fact that Defendants proceeded with this action for approximately 16 months --including answer, discovery, and CMCs -- without any assertion of their right to arbitration. [ROA ## 25, 73, 82; Hemesath Decl., Exs. 1-8.] Further, without explanation, Defendants waited until five months before trial to bring their motion to compel arbitration. On these facts, in in line with <i>Kokubu v. Sudo</i> (2022) 76 Cal.App.5th 1074, the court finds that Defendants by pursuing litigation of this case for over a year and waiting until five months before trial to assert a right to arbitration, have waived their right to arbitration. The motion is therefore denied.
6	2023-1351946 Gonzales vs. The Foodware Group	Motion To Compel Further Responses to RFP of Documents The Court grants Plaintiff Corrine Gonzales’ Motion to compel further responses to Requests for Production of Documents, set one, Nos. 1, 2, 22, and 23 from Defendant Costco Wholesale Corporation. Defendant shall provide supplemental verified written responses, without objections, and the documents within 30 days of notice of this order. The Motion is denied as to Nos. 15-21. <u>Legal Standard</u> Code of Civil Procedure section 2031.220 requires a party responding to an inspection demand to respond with (1) a statement that it will comply, (2) a representation that it does not have the ability to comply, or (3) an objection. (Code Civ. Proc., § 2031.220.) An agreement to comply must be rather specific as to what is agreed to. It must state that the production and inspection will be allowed (in whole or in part); and that the documents or things in the demanded category that are in the responding party's possession, custody, or control will be produced. (Code Civ. Proc., § 2031.220.) On receipt of the response, the demanding party may move to compel further response if any of the following apply: (1) a statement of

compliance is incomplete; (2) a representation of inability to comply is inadequate, incomplete or evasive; (3) an objection is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a).)

The motion must set forth specific facts showing good cause justifying the discovery. (Code Civ. Proc., § 2031.310, subd. (b).) “Good cause” for production of documents may be established where it is shown that the request is made in good faith and that the documents sought are relevant to the subject matter and material to the issues in the litigation. (*Associated Brewers Distributing Company, Inc. v. Superior Court* (1967) 65 Cal.2d 583, 588).

If good cause is shown, the burden shifts to the responding party to justify any objections made to documents production. (*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98. It has been held reversible error to deny discovery where the objectives of discovery—preventing surprise at trial and allowing proper preparation for trial—are defeated by the denial. (*Associated Brewers, supra*, at p. 588.)

Merits

As to all these requests, Costco has indicated compliance by identifying specific documents for production. But the responses are not Code-compliant.

The party to whom the CCP § 2031.010 demand is directed must respond separately to each item in the demand by one of the following:

- Agreement to comply: A statement that the party will comply by the date set for inspection with the particular demand for inspection, testing, etc.; or
- Representation of inability to comply: A statement that the party lacks the ability to comply with the particular demand; or
- Objections: An objection to all or part of the demand.

[CCP § 2031.210(a)]

The response must be rather specific as to what is agreed to. It must state:

- That the production and inspection demanded will be allowed (in whole or in part); and
- That the documents or things in the demanded category that are in the responding party's possession, custody or control will be produced.

[CCP § 2031.220]

The responses to Nos. 1, 2, 22, and 23 do not meet these requirements.

The Motion is denied as to Nos. 15-21 because Plaintiff has not shown good cause for the breadth of the documents requested, seeking “all documents” including all communications both internal and external.

Sanctions are denied.

Motion to Compel Further Responses to Special Interrogatories

The Court grants Plaintiff Corrine Gonzales' Motion to compel further responses to Special Interrogatories, set one, Nos. 8, 9, and 10 from Defendant Costco Wholesale Corporation but with *limitations* as provided below. Defendant shall provide supplemental verified written responses, without objections, within 30 days of notice of this order to the interrogatories *as limited*.

Legal Standard

A party may move to compel further responses interrogatories on the grounds that the answer is evasive or incomplete. (Code Civ. Proc., § 2030.300, subd. (a)(1).) If a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure to fully answer the interrogatories. (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.)

If a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure to fully answer the interrogatories. (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255; *Williams v. Superior Court* (2017) 3 Cal.5th 531, 541 [“While the party propounding interrogatories may have the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory.”].)

Merits

Defendant has met its burden to show that Nos. 8, 9, and 10 are objectionable as worded.

Therefore, as to Nos. 8 and 9, the Court limits the requests to the 3 years prior to December 2024, to the United States only, for complaints/injuries regarding the same mechanism of injury, and identifying only the complainant's name. Further, discovery can be conducted into the “nature of and substance of their concerns” involving the chaffing dish if warranted.

As to No. 10, Defendant need only provide the name of the plaintiff, jurisdiction, and case number if any lawsuits were filed against it concerning the same mechanism of injury caused by the chaffing dish.

The Court finds *Perkins v. Superior Court* (1981) 118 Cal.App.3d 761, 763 of limited value because the mechanism of injury here is clear, unlike an exploding product.

Plaintiff is ordered to serve notice of this ruling.

7	2023-1334802 McCorkle vs. La Habra Convalescent Hospital	Defendant La Habra Post Acute, LLC’s motion to compel further responses of Plaintiff Liza McCorkle to form interrogatories, set one, is denied. Defendant moves for an order compelling Plaintiff to provide a further response to form interrogatory no. 12.1, which requires Plaintiff to identify the witnesses to the “INCIDENT.” Defendant has not indicated that “INCIDENT” was specially or uniquely defined. Although Defendant contends that Plaintiff’s response was “not complete and straightforward,” given the many “circumstances and events” alleged in the Complaint, Plaintiff’s response was reasonable subject to her objection that the interrogatory was overly broad, vague and ambiguous. As explained in Rutter: “The term ‘INCIDENT’ may be ambiguous and confusing where the claim involved is based on multiple phone calls, letters, conversations, etc.” Thus, as a “practice pointer,” Rutter recommends using the option to “define ‘INCIDENT’ with a unique description.” Because it “may avoid the ambiguous and confusing objection.” (Cal. Prac. Guide Civ. Pro. Before Trial at ¶¶ 8:933.8-8:933.9.) That “pointer” is applicable, here. Defendant also complains that Plaintiff “does not properly identify any of the witnesses as no address or telephone number is provided in Plaintiff’s responses.” However, Plaintiff’s response stated that she was providing the information to “the best of [her] knowledge.” Plaintiff is not required to provide information she does not have—she is only required to answer “as the information reasonably available” permits. Accordingly, the motion shall be denied without prejudice to Defendant propounding this interrogatory with a narrower definition of “INCIDENT.” Defendant La Habra Post Acute, LLC’s motion to compel further responses of Plaintiff Liza McCorkle to special interrogatories, set one, is granted. Defendant moves for an order compelling Plaintiff to provide further responses to its special interrogatories, set one, nos. 1-6, 8-16, 18-33, 35-39, 42, and 44. The special interrogatories can be divided into two categories. Numbers 1, 3, 5, 11, 13, 15, 18, 20, 22, 24, 26, 28, 30, 32, 37, ask Plaintiff to “state all facts” to support contentions and allegations in the Complaint, i.e., “contention rogs.” While numbers 2, 4, 6, 8, 9, 10, 12, 14, 16, 19, 21, 23, 25, 27, 29, 31, 33, 35, 36, 38, 39, 42, and 44, ask Plaintiff to “IDENTIFY all PERSONS” she believes may have knowledge of those contentions/allegations. In response to the former category, Plaintiff responded with objections and a very long narrative (9 to 10 pages) that basically parrots the “General Allegations” in the
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